

§ 1013. Jurisdiction. (a) The family court has exclusive original jurisdiction over proceedings under this article alleging the abuse or neglect of a child.

(b) For the protection of children, the family court has jurisdiction over proceedings under this article notwithstanding the fact that a criminal court also has or may be exercising jurisdiction over the facts alleged in the petition or complaint.

(c) In determining the jurisdiction of the court under this article, the age of the child at the time the proceedings are initiated is controlling.

(d) In determining the jurisdiction of the court under this article, the child need not be currently in the care or custody of the respondent if the court otherwise has jurisdiction over the matter.